

SEAL

GOVERNMENT OF HARYANA

LEGISLATIVE DEPARTMENT

**THE HARYANA SALARIES AND ALLOWANCES OF MINISTERS
ACT, 1970**

(HARYANA ACT NO.3 OF 1970)

(as amended upto 31-12-2011)

THE HARYANA SALARIES AND ALLOWANCES OF MINISTERS ACT, 1970

(HARYANA ACT NO.3 OF 1970)

TABLE OF CONTENTS

Sections	Pages
1. Short title	4
2. Definitions	4
3. Salaries and sumptuary allowance	4
4. Residence	4
5 Conveyance	4
5-A Expense to maintain office in Constituency/district	4
6. Liability to pay income tax	5
7. Ministers not to draw salaries or allowances As members of State Legislature	5
8. Travelling and daily allowances to Ministers	5
9 Power to make rules.	5
10 Repeal and savings	6

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THE HARYANA SALARIES AND ALLOWANCES OF MINISTER ACT, 1970

(HARYANA ACT NO.3 OF 1970)

[Received the assent of the Governor of Haryana on the 20th March, 1970 and was first published in the Haryana Government Gazette (Extraordinary), of the 24th March, 1972].

1	2	3	4
Year	No.	Short title	Whether repealed or otherwise affected by legislation
1970	3	The Haryana Salaries and Allowances of Ministers Act, 1970	Amended by Haryana Act 21 of 1976 ² Amended by Haryana Act 14 of 1980 ³ Amended by Haryana Act 15 of 1988 ⁴ Amended by Haryana Act 1 of 1993 ⁵ Amended by Haryana Act 15 of 1997 ⁶ Amended by Haryana Act 14 of 1998 ⁷ Amended by Haryana Act 8 of 2002 ⁸ Amended by Haryana Act 5 of 2006 ⁹ Amended by Haryana Act 12 of 2008 ¹⁰ Amended by Haryana Act 30 of 2008 ¹¹ Amended by Haryana Act 6 of 2011 ¹²

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ACT

to provide for the Salaries and Allowances of Ministers in the State of Haryana.

1. For Statement of Objects and Reasons, see Haryana government Gazettee (Extraordinary), dated 18-2-1970 page 133.
2. For Statement of Objects and Reasons, see Haryana government Gazettee (Extraordinary), dated 1-7-1976 page 1210
3. For Statement of Objects and Reasons, see Haryana government Gazettee (Extraordinary), dated 11-3-1980, page 474.
4. For Statement of Objects and Reasons, see Haryana government Gazettee (Extraordinary), dated 23-3-1988, page 398.
5. For Statement of Objects and Reasons, see Haryana government Gazettee (Extraordinary), dated 22-12-1992, page 2640.
6. For Statement of Objects and Reasons, see Haryana government Gazettee (Extraordinary), dated 22-7-1997, page 1751.
7. For Statement of Objects and Reasons, see Haryana government Gazettee (Extraordinary), dated 25-7-1998, page 1260.
8. For Statement of Objects and Reasons, see Haryana government Gazettee (Extraordinary), dated 20-3-2002, page 603.
9. For Statement of Objects and Reasons, see Haryana government Gazettee (Extraordinary), dated 13-12-2005, page 4635.
10. For Statement of Objects and Reasons, see Haryana government Gazettee (Extraordinary), dated 27-3-2008, page 1725.
11. For Statement of Objects and Reasons, see Haryana government Gazettee (Extraordinary), dated 30-8-2008, page 3866.
12. For Statement of Objects and Reasons, see Haryana government Gazettee (Extraordinary), dated 24-2-2011, page 721.

Be it enacted by the Legislature of the State of Haryana in the Twenty-first year of the Republic of India as follows:-

Short title.	1. This Act may be called the Haryana Salaries and Allowances of Ministers Act, 1970.
Definitions.	2. In this Act, "Minister" means a member of the Council of Ministers, by whatever name called, and includes a Deputy Minister.
Salaries and sumptuary allowance.	3. {1} There shall be paid to Minister a salary of {forty thousands rupees} per mensem. (2) There shall be paid a sumptuary allowance to the Minister as may be prescribed.]
Residence.	4. Each Minister shall be entitled without payment of rent to the use of a furnished residence throughout his term of office and for a period of fifteen days immediately thereafter, and no charge shall fall on the Minister personally in respect of the maintenance of such residence or in lieu of such residence shall be entitled to be paid,___ (a) in the case of a Deputy Minister, {Such allowance as may be prescribed;} (b) in the case of any other Minister, {Such allowance as may be prescribed;} as the State Government may in each case determine. Explanation. For the purpose of this section, "residence" includes the staff quarters and other buildings Appurtenant thereto, and the garden thereof, and "maintenance", in relation to a residence, includes the payment of local rates and taxes and the provision of electricity and water.
Conveyance.	5. Each Minister shall be paid a {conveyance allowance at the rate as may be prescribed} or, in lieu thereof, {two State cars} a State car, the expenses on the maintenance and propulsion of which shall be borne, by the State Government. {Proviso *****}
Expense to maintain office in Constituency/District.	7{5A. Each Minister shall be paid an allowance at the rate of {two thousand rupees} per mensem or as may be prescribed on account of expenses on the maintenance of office in his Constituency/District.]

1. Substituted by Haryana Act 14 of 1980 and further substituted by Haryana Act 15 of 1988 and further substituted by Haryana Act 1 of 1993 and further substituted by Haryana Act 15 of 1997.
2. Substituted by Haryana Act 14 of 1998 and further substituted by Haryana Act 5 of 2006 and further substituted by Haryana Act 12 of 2008 and further substituted by Haryana Act 10 of 2011 w.e.f. 7-9-2010.
3. Substituted by Haryana Act 15 of 1997
4. Substituted by Haryana Act 15 of 1997.
5. Substituted by Haryana Act 30 of 2008.
6. Omitted by Haryana Act 15 of 1997
7. Inserted by Haryana Act 14 of 1998.
8. Substituted by Haryana Act 12 of 2008.

Liability to pay income tax. 6. The Minister's salary and allowances referred to in this Act shall be exclusive of the tax payable in respect thereof under any law relating to income tax for the time being in force, and such tax shall be borne by the State Government.

Explanation.---For the purposes of this section, the ¹[(salary and allowances received by the Minister and the allowances received by him as a member of the Haryana Legislative Assembly)] during any financial year shall be deemed to be his only income for that year.

Ministers not to draw salaries or allowances as members of State Legislature. 7. No person in receipt of any salary or allowance under this Act shall be entitled to receive any sum out of the funds provided by the ²[State Legislature except as specifically provided in the Haryana Legislative Assembly (Allowances and Pension of Members) Act, 1975] by way of salary or allowance in respect of his membership of the House of the State Legislature.

Travelling and daily allowance to Ministers. ³[8. (1) The travelling allowances of Ministers shall be regulated in accordance with such rules as may be framed by the State Government from time to time.

Provided that no mileage or travelling allowance shall be chargeable in respect of journeys performed in a State Car.

(2) A daily allowance ⁴(.....) at such rate as may be prescribed shall be paid to a Minister while on tour.".]

Power to make rules. 9 (1) The State Government may, by notification, make rules for carrying out the purposes of this Act:

Provided that any rules relating to any matter to which this Act relates and which were in force immediately before the commencement of this Act, shall, in so far as they are not inconsistent with the provisions of this Act, and until rules are framed under this Act in respect of such matter, be deemed to be made under this Act.

(2) Every rule made under this section shall be laid as soon as may be after it is made before the House of the State Legislature while it is in session for a total period of ten days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session in which it is so laid or the successive session aforesaid, the House agrees in making any modification in the rule or the House agrees that the rule should not be made, the rules shall thereafter have effect only in such modified form or be of no effect, as the case may be ; so however, that any such modification or annulment shall be without prejudice to the validity or anything previously done under that rule.

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1. Substituted by Haryana Act 21 of 1976 and shall always be deemed to have been substituted.
 2. Substituted by Haryana Act 8 of 2002.
 3. Substituted by abid.
 4. Substituted by Haryana Act 5 of 2006 further omitted by Haryana Act 10 of 2011.

Repeal and 10. (1) The East Punjab Minister's Salaries Act, 1947 (East savings. Punjab Act No.6 of 1947), and the Salaries and Allowances of Deputy Ministers, Punjab Act, 1956 (Punjab Act No.22 of 1956), in their application to the State of Haryana and the Haryana Salaries and Allowances of Ministers Ordinance, 1970 (Haryana Ordinance No.3 of 1970), are hereby repealed.

(2) Notwithstanding such repeal, anything done or any action taken under the Haryana Salaries and Allowances of Ministers Ordinance, 1970, shall be deemed to have been done or taken under this Act as if this Act had commenced on the 23rd January, 1970.